

Lunair World

U.S. Import Requirements Library Accuracy Review

Federal requirements, trigger logic, importer failure patterns, enforcement severity, and library design recommendations

Prepared	August 25, 2026
Scope	Part A: toys and electronics Part B: six proposed product categories
Research basis	Official federal and California regulator sources linked throughout

This report consolidates the complete feasibility review and specialist-style written answer into one referenceable document. Repetition has been removed, but all substantive findings, qualifications, and implementation recommendations are preserved.

About this review

Bottom line

Yes - the questionnaire can be answered carefully from official sources, and most of the proposed library can be built. The current draft should not be published as written. The most important corrections are the missing federal toy standard, the oversimplified FCC and lithium-battery language, the missing button-cell rule, and the need to separate broad categories into product-specific modules.

The review is written in the voice and level of detail expected from a practical compliance specialist. It distinguishes mandatory federal rules from state overlays, voluntary or incorporated standards, transport rules, and marketplace or retailer expectations. It also identifies where a licensed customs broker, accredited laboratory, FCC Telecommunication Certification Body, toxicologist, or attorney remains necessary.

Important limitation. This is regulatory research and product-compliance guidance, not a formal legal opinion, customs classification ruling, laboratory certification, or guarantee of admissibility. Product facts and rule versions must be verified for each SKU before import or sale.

How to read the severity ratings

Rating	Working meaning
Critical	Likely to stop, detain, refuse, or render a shipment non-transportable; may also trigger immediate recall.
High	Sale may be prohibited; strong recall, seizure, civil-penalty, or major enforcement exposure.
Medium	Often corrected through relabeling, records, post-entry action, or penalties, but can escalate with repeat or deceptive conduct.
Low	Primarily documentation, commercial, retailer, or state registration risk; still SKU- and jurisdiction-dependent.

Severity is directional, not a prediction. Port treatment varies with the agency, product, entry data, history, hazard, and available evidence. A paperwork defect can become critical if it prevents release or hides an unsafe product.

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1. Executive assessment

What is answerable

Area	Conclusion	Why
Toys and children's products	Yes, with major corrections	CPSC scope, testing, certificates, tracking labels, and attribute-based triggers can be mapped from primary sources.
Consumer electronics	Yes, with scope questions	FCC authorization depends on the device's emissions and radio functions; battery transport and CPSC overlays require separate modules.
Apparel and footwear	Yes, but split footwear	Textile labeling, care labeling, flammability, sleepwear, origin, and children's overlays are supportable; many footwear products sit outside the Textile Act.
Cosmetics and personal care	Yes	MoCRA, labeling, ingredient and color-additive controls, records, adverse-event reporting, and import enforcement can be documented. GMP status must be versioned.
Kitchenware and food contact	Yes, material-specific	A universal 'FDA food-grade certificate' is inaccurate. Compliance depends on substance, use conditions, migration, and authorization route.
Furniture and furnishings	Yes, only as modules	Upholstered furniture, mattresses, composite wood, and clothing storage units have different statutes, tests, labels, certificates, and severity.
Jewelry and accessories	Yes, with state caveat	Federal children's lead rules and FTC marketing rules are supportable; there is no universal federal cadmium limit for all jewelry.
Pet products	Partially as one category	Pet food, animal-derived articles, pesticides/drugs, and ordinary accessories must be separated because FDA, APHIS, EPA, and general consumer-product rules differ.

Immediate corrections before launch

- Add the mandatory toy standard: 16 CFR Part 1250 incorporates ASTM F963-23 for products within scope. Lead and phthalates alone are not a complete toy entry.
- Replace 'CPSC-lab testing' with 'testing by a CPSC-accepted third-party laboratory where required.' The U.S. importer or domestic manufacturer issues the Children's Product Certificate (CPC); the laboratory does not.
- Use the official term General Certificate of Conformity (GCC), and trigger it by an applicable CPSC rule, not merely by an HTS heading.
- Treat CPSC certificate eFiling as a live import-data obligation from July 8, 2026, not merely a future note. [CPSC announcement](#).
- Split FCC requirements into intentional radiators and unintentional radiators. Part 2 supplies authorization procedures; Part 15 supplies many substantive technical rules. 'Powered' alone is not the legal trigger.
- Replace the lithium-battery line with a transport module centered on 49 CFR 173.185, UN 38.3 design-type testing, the test summary, classification, state of charge and packaging, marking, documentation, damaged/defective status, and mode-specific rules.
- Add Reese's Law and 16 CFR Part 1263 for products containing or designed to use button-cell or coin batteries, in addition to the battery transport module.
- Keep California Proposition 65 and similar state laws as a separate jurisdictional overlay; do not present them as conditions of federal customs entry.

The central design rule

HTS codes help identify the customs universe; product attributes determine most product-safety obligations. The rules engine should ask who the product is for, how it is marketed, what it contains, what it does, where it is sold, and which claims appear on the product and listing.

Where a human specialist is still required

Specialist	Use them for
Licensed customs broker or customs counsel	HTS classification, special program eligibility, AD/CVD exposure, country-of-origin determinations, entry strategy, ACE filing facts, and CBP ruling questions.
CPSC-accepted or otherwise accredited laboratory	Sampling plan, component testing, age-grade protocol, use-and-abuse sequence, pass/fail determination, production-change retesting, and defensible test reports.
FCC-recognized test lab / TCB	Radio test plan, grant scope, permissive change or new certification, module-host integration, antenna and enclosure changes, and FCC ID questions.
Toxicologist / Prop 65 counsel	Exposure assessment, safe-harbor analysis, warning content and placement, settlement-specific risks, and state chemical limits.
FDA / food-contact specialist	Migration and formulation review, FCN coverage, intended-use conditions, ingredient status, drug/cosmetic boundary, FSVP hazard analysis, and enforcement response.
Attorney	Formal opinions, enforcement disputes, privilege-sensitive investigations, contested scope, recalls, penalties, and communications with regulators.

A research-based library can describe recurring importer failures using public recalls, warnings, refusals, and enforcement materials. It should not claim that an ordering of 'most common mistakes' is statistically complete unless supported by agency data or the named reviewer's own documented experience.

2. Part A - Toys and children's products

HTS 9503, 9504, and 9505 are useful screening headings, but they do not make every item a children's product. Age grading, design, foreseeable use, marketing, size, play value, themes, and the expected user population control. HTS 9504 may include adult games and equipment; HTS 9505 includes festive articles that may not be toys.

Children's Product Certificate (CPC)		Critical
Agency: CPSC Basis: 15 U.S.C. 2063(a)(2); 16 CFR Part 1110		
Trigger	A consumer product designed or intended primarily for children 12 years of age or younger that is subject to one or more children's product safety rules.	
Accuracy finding	Partly correct, but rewrite. The U.S. importer or domestic manufacturer issues the CPC based on passing tests, including testing by a CPSC-accepted third-party laboratory where a children's product safety rule requires it. A 'CPSC lab' does not issue or approve the CPC. The certificate must identify the product, each applicable rule, certifier, record custodian, manufacture and test dates/places, and each third-party lab.	
What importers get wrong	Using a generic factory report as the certificate; certifying the wrong SKU, material, color, or factory; omitting an applicable rule; assuming CPSC pre-approves products; or failing to link the test report to the production lot. Certificate data now also matters to import eFiling.	
Official sources	CPSC toy guidance ; CPSC eFiling ; CPSC import violations	

Mandatory federal toy standard		Critical
Agency: CPSC Basis: 16 CFR Part 1250; ASTM F963-23 incorporated by reference		
Trigger	A product within the federal toy-standard scope. The specific ASTM sections depend on the product's features and hazards.	
Accuracy finding	Missing from the draft. Add a separate requirement for the mandatory toy standard. For products manufactured on or after April 20, 2024, the current incorporated edition is ASTM F963-23. The library must map applicable sections rather than treating the standard as a single universal test.	
What importers get wrong	Testing only lead and phthalates; omitting mechanical and physical hazards, magnets, cords, sound, projectiles, battery access, labeling, or use-and-abuse testing; or relying on a report under an obsolete ASTM edition.	
Official sources	CPSC Toy Safety Business Guidance ; CPSC Common E-commerce Safety Violations	

Lead limits		Critical / High
Agency: CPSC Basis: 16 CFR Part 1303; 15 U.S.C. 1278a; ASTM F963 soluble-element provisions where applicable		
Trigger	Lead paint applies to covered paint and similar surface coatings. Total lead content limits apply to accessible components of children's products, subject to exclusions and determinations. Toy-standard soluble elements may add separate material requirements.	
Accuracy finding	The draft merges distinct requirements. Store paint/surface coating, accessible substrate/component lead, and toy-standard soluble elements as separate rule objects with separate triggers and tests.	
What importers get wrong	Testing only the base metal or main plastic and missing clasps, zippers, charms, fasteners, solder, screen-printing, decals, or other coatings; relying on a supplier material declaration without a defensible component map.	
Official sources	CPSC Toy Safety Business Guidance ; CPSC Most Common Import Violations	

Phthalate limits		Critical / High
Agency: CPSC Basis: 16 CFR Part 1307; 15 U.S.C. 2057c		
Trigger	Children's toys and child-care articles, especially accessible plasticized components. A child-care article is generally one used by children age 3 and younger to facilitate sleeping or feeding, or aid sucking or teething.	
Accuracy finding	Narrow the draft. Phthalates are not a blanket requirement for every children's product. The library should ask whether the article is a children's toy or child-care article and identify accessible plasticized components.	
What importers get wrong	Applying the rule to all children's goods; or, conversely, testing only obvious soft PVC while missing vinyl decals, grips, inks, artificial leather, tubing, flexible coatings, or plasticized accessories.	
Official sources	16 CFR Part 1307 - Prohibition of Children's Toys and Child Care Articles Containing Specified Phthalates	

Tracking label		High / Medium
Agency: CPSC Basis: 15 U.S.C. 2063(a)(5)		
Trigger	Children's products. Distinguishing marks generally belong on the product and packaging, to the extent practicable, and must enable the manufacturer and ultimate purchaser to ascertain source and production information.	
Accuracy finding	Substantively correct, but add the data fields and the 'to the extent practicable' analysis. A tracking label is distinct from a CPC and is not normally listed as an applicable safety rule on the CPC.	
What importers get wrong	Using only 'Made in China,' a removable retail sticker, an internal supplier code no U.S. party can decode, or a generic production date shared across factories or lots.	
Official sources	CPSC Toy Safety Business Guidance ; CPSC Common E-commerce Safety Violations	

Additional CPSC triggers to include

Trigger module	Basis	When to ask
Small parts	16 CFR Part 1501	Products intended for children under 3; accessible small parts after use-and-abuse.
Choking-hazard warnings	16 CFR 1500.19, 1500.20, 1500.121	Certain toys and games for older children containing small parts, balls, marbles, or balloons; warning presentation rules.
Electrically operated toys	16 CFR Part 1505	Products within scope that are intended for children and powered by electricity.
Toy, look-alike, and imitation firearms	16 CFR Part 1272; ASTM F963 provisions	Products resembling firearms; markings and toy-standard hazards.
Magnets	16 CFR Part 1262 and/or ASTM F963	Products with loose or separable high-powered magnets, depending on product and rule scope.
Art materials	16 CFR 1500.14(b)(8); LHAMA framework	Art materials, including some children's craft products; chronic-hazard review and labeling.
Button-cell or coin batteries	16 CFR Part 1263; 15 U.S.C. 2056e; ASTM F963 for toys	Consumer products containing or designed to use these batteries; toy-specific and general-product paths differ.
Durable infant or toddler products	Product-specific 16 CFR parts	Cribs, strollers, high chairs, gates, bassinets, carriers, and other defined nursery products.

Answers to the specific questions

Is a GCC missing for non-children's CPSC-regulated items in these HTS headings? Potentially, yes, but only when a specific CPSC rule requires one. The official name is General Certificate of Conformity. Examples that may trigger a GCC include certain general-use products subject to button-cell requirements, magnet rules, imitation-firearm marking rules, or the lead-paint ban. Do not build a blanket GCC rule around HTS 9503-9505. Use a rule-by-rule trigger matrix. [CPSC GCC guidance](#) and [CPSC rule list](#).

Should California Proposition 65 be included? Yes, as a state-market overlay, not as a federal import-admissibility condition. It is common enough for a commercial library, but the obligation depends on listed-chemical exposure, business and product circumstances, exemptions, and warning rules. Other state restrictions, including cadmium and children's-product rules, should be separate jurisdictional modules. [California OEHHA guidance](#).

3. Part A - Consumer electronics and accessories

The proposed headings - HTS 8471, 8504, 8517, 8518, 8543, and 9405 - cover a very broad universe. The rules engine must ask whether the product intentionally transmits RF energy, contains a digital device or switching circuitry, uses ISM energy, includes batteries, contains a button cell, is a children's product, or is itself subject to another safety rule.

FCC intentional radiators		High
Agency: FCC Basis: 47 CFR Parts 2 and 15, including equipment-authorization and technical provisions		
Trigger	A device intentionally generates and emits radiofrequency energy by radiation or induction - for example Wi-Fi, Bluetooth, cellular, RFID, or many wireless controls.	
Accuracy finding	Rewrite the draft. Part 2 provides authorization procedures; Part 15 supplies many technical requirements. Most intentional radiators require certification, not merely a generic statement of conformity. The exact route depends on the device and service.	
What importers get wrong	Treating CE or RoHS as FCC compliance; using a certified module without satisfying host, antenna, labeling, user-information, or integration conditions; changing an antenna, enclosure, RF layout, power, or firmware without reviewing authorization; or using the wrong FCC ID.	
Official sources	FCC enforcement advisory	

FCC unintentional radiators		High / Medium
Agency: FCC Basis: 47 CFR Part 15, Subpart B; 47 CFR 15.101; related Part 2 procedures		
Trigger	A digital device or other covered device that generates RF energy for internal use and may radiate incidentally - typically products with a clock or microprocessor, subject to classifications and exemptions.	
Accuracy finding	Yes, include this as a distinct library entry. Devices with no transmitter can still require Supplier's Declaration of Conformity (SDoC) or certification under the authorization table. 'Powered' by itself is not enough; a simple passive or non-digital powered product may not be an unintentional radiator.	
What importers get wrong	Assuming 'no wireless' means 'no FCC'; importing without the U.S. responsible party required for SDoC; omitting user-information statements; relying on testing for a materially different power supply, board, clock speed, enclosure, or cable configuration.	
Official sources	47 CFR 15.101 - Equipment Authorization of Unintentional Radiators ; FCC Enforcement Advisory on Radiofrequency Devices	

Other FCC scope checks		High / Medium
Agency: FCC Basis: 47 CFR Parts 2, 15, 18, and service-specific parts		
Trigger	Equipment using industrial, scientific, or medical RF energy; licensed-service transmitters; modular transmitters; imported subassemblies; or products claimed exempt.	
Accuracy finding	Add decision questions for Part 18, service-specific authorization, modular approval conditions, import exemptions, FCC ID and labeling, user manuals, and the responsible party under 47 CFR 2.909.	
What importers get wrong	Applying Part 15 automatically to every electronic product; treating a module grant as a blanket approval for every host; or failing to preserve the records supporting SDoC.	
Official sources	FCC Enforcement Advisory on Radiofrequency Devices	

Lithium battery transport		Critical
Agency: DOT / PHMSA, plus air or vessel transport authorities and carriers Basis: 49 CFR Parts 171-180, especially 49 CFR 173.185; UN Manual of Tests and Criteria, subsection 38.3		
Trigger	Lithium-metal or lithium-ion cells and batteries shipped alone, packed with equipment, or contained in equipment. Special rules depend on chemistry, lithium content or watt-hours, configuration, state of charge, quantity, damage/defect status, packaging, and transport mode.	
Accuracy finding	The draft is too broad and too narrow at the same time. UN 38.3 is the design-type testing requirement, while 49 CFR 173.185 and related HMR provisions govern classification, packaging, marking, documentation, exceptions, and damaged or recalled batteries. The test summary must be available, but it is not a complete shipping-compliance file.	
What importers get wrong	Using an incomplete summary; failing to link the tested battery model to the shipped cell, pack, or equipment; confusing a test summary with transport compliance; ignoring watt-hours, quantity, state of charge, damaged status, or the packed-with/contained-in distinction; changing cell, protection circuit, pack geometry, or supplier without reassessment; or overlooking air-carrier restrictions.	
Official sources	PHMSA Lithium Battery Test Summary Guidance	

Button-cell and coin-battery product safety		Critical / High
Agency: CPSC Basis: Reese's Law, 15 U.S.C. 2056e; 16 CFR Part 1263; toy-specific requirements where applicable		
Trigger	A consumer product containing or designed to use a button-cell or coin battery, subject to statutory and regulatory exclusions and product-specific paths.	
Accuracy finding	Missing from the draft. This is separate from hazardous-material transport. The library should cover secure battery compartments, use-and-abuse tests, warnings, packaging, and the applicable CPC or GCC certification path.	
What importers get wrong	Checking UN 38.3 but ignoring ingestion safety; weak screw or twist-lock compartments; packaging without required warnings; wrong certificate type; or assuming a toy test automatically resolves a non-toy host product.	
Official sources	CPSC Button Cell and Coin Battery Guidance	

CPSC overlap and powered nightlights

Cross-category logic is the right architecture, but the overlap must be driven by product attributes and claims rather than the customs heading. For a nightlight or similar product, ask:

- Is it designed or marketed primarily for children 12 or younger? A child-bedroom context alone is not conclusive, but toy-like shape, play value, child-facing instructions, themes, size, and advertising may matter.
- Does it contain a button cell, magnet, lead-painted accessible surface, accessible small part, cord, or other CPSC-regulated hazard?
- Does it contain a digital circuit or wireless transmitter? If so, evaluate FCC Subpart B and/or intentional-radiator rules.
- Does it ship with lithium cells or batteries? If so, evaluate transport requirements independently from product safety.
- Are electrical-safety marks such as UL or ETL required by a retailer, marketplace, insurer, local electrical code, or procurement contract? These are commercially important but are not a universal federal customs certificate for every consumer electronic product.

4. Part B - Apparel and footwear

Recommended library design: separate general textile apparel, wool/fur, children's sleepwear, ordinary footwear, and footwear with special materials or protective claims. Do not assume every footwear item is covered by the Textile Fiber Products Identification Act.

Requirement	Agency	Basis	Trigger	Severity
Fiber content, origin, and responsible company	FTC	16 CFR Part 303; Part 300 for wool; Part 301 for fur	Textile, wool, or fur product within the relevant act and exclusions.	Medium
Care labeling	FTC	16 CFR Part 423	Textile wearing apparel; limited exclusions apply.	Medium
Country-of-origin marking	CBP	19 U.S.C. 1304; 19 CFR Part 134	Foreign-origin article unless an exception applies; textile-specific presentation may also matter.	High / Medium
General wearing-apparel flammability	CPSC	16 CFR Part 1610	Clothing textiles within scope; exemptions and fabric classifications are technical.	Critical / High
Vinyl plastic film flammability	CPSC	16 CFR Part 1611	Wearing apparel made from covered vinyl plastic film.	Critical / High
Children's sleepwear	CPSC	16 CFR Parts 1615 and 1616	Sleepwear in covered children's sizes; tight-fitting alternative requires exact dimensions and labeling.	Critical / High
Children's-product overlays	CPSC	Lead, tracking label, CPC, small-parts and product-specific rules	Primarily intended for children 12 or younger and subject to an applicable rule.	Critical / High

What sellers most often get wrong

- Calling sleepwear 'loungewear' or 'playwear' even though design, sizing, marketing, and foreseeable use point to sleeping. Product naming alone does not control.
- Using the tight-fitting sleepwear path without meeting every dimensional specification, fabric requirement, and permanent-label condition.
- Assuming a fabric exemption resolves trims, appliques, foam, elastic, decorations, or the finished garment's separate obligations.
- Labeling bamboo-derived rayon simply as 'bamboo'; using marketing fiber names instead of generic fiber names; or listing percentages that do not match the product.
- Using care instructions that are not supported by a reasonable basis, or placing origin and fiber data where it is not accessible to the buyer.
- Treating an adult-apparel enforcement policy or exemption as applicable to children's sleepwear, costumes, or products with different hazards.
- Assuming all footwear is excluded. Ordinary shoes may not require Textile Act fiber labels, but origin marking still applies, and wool, fur, protective, children's, animal-material, or other claims can trigger separate rules.

Official support: [FTC Threading Your Way Through Textile Labeling](#); [FTC Penalty Offenses Concerning Textiles](#); [CPSC Children's Sleepwear Recall Example](#); [CBP Marking of Country of Origin on U.S. Imports](#).

5. Part B - Cosmetics and personal care

Start with a product-classification gate. A cosmetic may become a drug, or both a cosmetic and a drug, because of intended-use claims such as treating acne, eczema, pain, infection, hair loss, or disease, or because of active ingredients such as sunscreen actives. The words on the package, website, social media, and marketplace listing all matter.

Requirement	Agency	Basis	Trigger	Severity
Adulteration and misbranding	FDA	Federal Food, Drug, and Cosmetic Act; 21 CFR Subchapter G	Cosmetics introduced into U.S. commerce.	Critical / High
Identity, net quantity, business identity, ingredient declaration, warnings	FDA	21 CFR Parts 701 and 740; related statute	Retail cosmetics, subject to format and placement rules.	High / Medium
Color additives	FDA	21 CFR Parts 73, 74, 81, and 82	Color added to a cosmetic; permitted use and certification status are color- and use-specific.	Critical / High
Facility registration	FDA	MoCRA; biennial registration	Covered manufacturing or processing facilities; exemptions and foreign-facility U.S.-agent rules apply.	High
Product listing	FDA	MoCRA; annual updates	Responsible person for a marketed cosmetic product, subject to exemptions.	High / Medium
Safety substantiation and records	FDA	MoCRA	Responsible person must maintain adequate substantiation of product safety.	High
Serious adverse-event reporting	FDA	MoCRA; 15-business-day initial report	Responsible person receives a report of a serious adverse event associated with the product.	High
Domestic contact information	FDA	MoCRA labeling provisions	Cosmetic label must facilitate receipt of adverse-event reports as required.	High / Medium

Version note as of August 25, 2026

MoCRA requires FDA to establish cosmetic good manufacturing practice regulations, but a final cosmetic GMP rule should not be represented as already effective unless the live Federal Register and eCFR are checked at publication time. The library should carry a status field for proposed, final, effective, and enforcement-discretion dates.

What sellers most often get wrong

- Claiming that a cosmetic is 'FDA approved' or that facility registration is product approval. FDA generally does not pre-approve cosmetic products, except for color additives as required.
- Using an EU or Asian label without adapting U.S. identity, net-quantity, ingredient nomenclature, business identity, warning, and contact requirements.
- Making drug claims - acne, eczema, hair growth, pain relief, antibacterial action, SPF or disease treatment - while importing as an ordinary cosmetic.
- Using a color additive outside its permitted area or conditions of use, or using a batch-certifiable color without certification.
- Treating a foreign supplier's ingredient list or certificate as safety substantiation; lacking preservation, stability, microbiological, contaminant, and adverse-event records.
- Assuming that a registered factory means each product is listed, or failing to keep the listing current after formulation, brand, or responsible-person changes.

- Misusing the narrow statutory 'soap' exception for products marketed with cosmetic or drug functions.

Enforcement significance. Misbranding, prohibited colors, contamination, drug claims, and unsafe products can support detention, refusal, import alerts, seizure, injunction, recall, or reconditioning. FDA does not inspect every entry, but a missing premarket approval or registration assumption can be costly. See [FDA Modernization of Cosmetics Regulation Act \(MoCRA\)](#), [FDA Cosmetics Facility Registration and Product Listing](#), [21 CFR Chapter I, Subchapter G - Cosmetics](#), [FDA Warning Letters Related to Cosmetics](#), and [FDA Import Refusals](#).

6. Part B - Kitchenware and food-contact items

Do not publish a universal 'FDA certificate required' line

U.S. food-contact compliance usually turns on whether each substance in the finished article is lawfully authorized for the intended conditions of use - for example by a 21 CFR food-additive regulation, an effective Food Contact Notification, GRAS status, prior sanction, or another exemption. A supplier declaration or migration report may be evidence, but neither is automatically an FDA approval certificate.

Requirement	Agency	Basis	Trigger	Severity
Food-contact substance authorization	FDA	FD&C; Act section 409; 21 CFR Parts 174-186; effective FCNs and other lawful routes	A substance is reasonably expected to migrate into food under intended use.	Critical / High
Good manufacturing and suitable purity/use conditions	FDA	Applicable indirect-additive regulations and general statutory controls	Food-contact material or component within a cited authorization.	High
Lead and cadmium in ceramicware / enameled ware	FDA	FD&C; Act adulteration provisions; FDA compliance policy guides and import controls	Glazed ceramic or enameled surfaces used with food or drink; vessel type and leachability matter.	Critical
Permanent non-food-use warning	FDA	FDA compliance policy for decorative ceramicware	Article resembles foodware but is unsuitable for food contact and relies on decorative-only treatment.	Critical / High
Children's and electronic overlays	CPSC / FCC / PHMSA	Product-specific rules	Children's tableware, powered appliances, wireless functions, button cells, or lithium batteries.	Varies

Minimum intake facts

- Every resin, monomer, additive, pigment, coating, adhesive, printing ink, lubricant, process aid, recycled-content source, and metal or ceramic surface that can reasonably affect food contact.
- Food type and chemistry - aqueous, acidic, alcoholic, fatty, dry - plus contact time, temperature, repeated use, microwave/oven/dishwasher exposure, and whether the article is single-use.
- The exact authorization route and its limitations, including whether an FCN applies to the named manufacturer or supplier and whether the intended conditions of use match.
- For ceramics, glass, enamel, and certain metal cookware: the food-contact surface, decoration location, vessel category, leachable lead/cadmium test method and results, and any permanent decorative-only warning.

What sellers most often get wrong

- Calling a product 'FDA approved' or 'food grade' without identifying the legal status of each relevant substance and the exact use conditions.
- Using a migration report with no formulation linkage, or relying on a report for one pigment, coating, thickness, supplier, food type, temperature, or duration when the production article differs.
- Citing an FCN that does not cover the actual manufacturer, substance, or use conditions.

- Testing total lead or cadmium when enforcement is based on leachable metal, or the reverse; treating decorative ceramicware as dinnerware while relying on a removable sticker.
- Ignoring rim, lip, interior decoration, metallic coatings, solder, or glaze changes because the base material is otherwise compliant.

Official support: [FDA Food Contact Substance Inventory](#); [FDA Letter Concerning Lead in Certain Imported Cookware](#); [FDA Compliance Policy Guide on Cadmium in Pottery](#).

7. Part B - Furniture and home furnishings

This should not be one library entry. At minimum, split upholstered furniture, mattresses and mattress pads, composite-wood products, and clothing storage units. A single SKU can trigger more than one module.

Upholstered furniture flammability		High
Agency: CPSC Basis: 16 CFR Part 1640; California TB 117-2013 incorporated as the federal standard		
Trigger	Upholstered furniture within the federal scope; exclusions and product definitions matter.	
Accuracy finding	Document applicable cover-fabric, barrier, resilient-filling, and decking-material compliance; use the required permanent labeling and maintain supporting records. A GCC is not required solely because Part 1640 applies.	
What importers get wrong	Applying a label without evidence that the components or finished construction satisfy the standard; confusing California's separate chemical/flame-retardant label with the federal flammability statement; or failing to reassess when fabric, foam, barrier, thread, or construction changes.	
Official sources	CPSC Upholstered Furniture FAQ	

Mattress and mattress-pad flammability		Critical / High
Agency: CPSC Basis: 16 CFR Parts 1632 and 1633, as applicable		
Trigger	Mattresses and mattress pads, including many compressed or roll-packed products; determine exact scope and exemptions.	
Accuracy finding	Map cigarette-ignition and open-flame standards, prototype and confirmation testing, records, labeling, and GCC requirements to the specific construction.	
What importers get wrong	Assuming a compressed mattress is outside scope; relying on a report for a different foam, ticking, quilting, adhesive, barrier, thickness, or construction; or making unsupported compliance statements on the label.	
Official sources	CPSC Mattress Flammability Recall Example	

Composite wood formaldehyde		Critical / High
Agency: EPA / CBP Basis: TSCA Title VI; 40 CFR Part 770; TSCA section 13 import certification		
Trigger	Hardwood plywood, medium-density fiberboard, particleboard, and finished goods containing regulated composite wood, subject to exemptions and de minimis provisions.	
Accuracy finding	Use panels from compliant, third-party-certified panel producers; preserve supplier and product records; apply required labels; obtain required statements; and make the TSCA section 13 import certification.	
What importers get wrong	Treating 'CARB Phase 2' as the complete federal file; lacking the panel producer and certification linkage; omitting compliant-language on invoices or bills of lading; missing labels at entry; overlooking hidden MDF or particleboard in a product marketed as wood; or failing to keep traceable records for three years.	
Official sources	EPA TSCA Title VI Importer Guidance ; EPA Enforcement for Imported Composite Wood	

Clothing storage units - STURDY / tip-over		Critical / High
Agency: CPSC Basis: 16 CFR Part 1261 and the STURDY Act framework		
Trigger	Clothing storage units within the defined scope, based on product type, dimensions, storage function, and other regulatory definitions.	
Accuracy finding	Add performance testing, warning and identification labels, instructions, GCC certification, and eFiling. An anchor kit is a supplemental risk-reduction measure, not a substitute for compliance with the performance standard.	
What importers get wrong	Calling a dresser a cabinet or nightstand to avoid scope; testing a different size or drawer configuration; shipping without the correct permanent labels or certificate; or assuming wall anchoring alone resolves a failing unit.	
Official sources	CPSC Clothing Storage Unit Warning Example ; CPSC Mandatory eFiling, effective July 8, 2026	

8. Part B - Jewelry and fashion accessories

Create separate paths for children's jewelry, adult jewelry, precious-metal or gemstone claims, and state chemical overlays. 'Jewelry' by itself does not establish one universal federal chemical limit.

Requirement	Agency	Basis	Trigger	Severity
Children's-product lead	CPSC	15 U.S.C. 1278a; 16 CFR Part 1303 for paint	Jewelry primarily intended for children 12 or younger; accessible components and coatings.	Critical / High
CPC, third-party testing, tracking label	CPSC	15 U.S.C. 2063; 16 CFR Part 1110	A children's jewelry product subject to a children's product safety rule.	Critical / High
Small parts / FHSA hazards	CPSC	16 CFR Part 1501; FHSA provisions	Age, product design, small components, aspiration/ingestion, acute toxicity, or other hazardous-substance facts.	Critical / High
Phthalates	CPSC	16 CFR Part 1307	Only if the item is also a children's toy or child-care article and has covered accessible plasticized material.	High
Precious metal and gemstone marketing	FTC	16 CFR Part 23; National Gold and Silver Stamping Act, 15 U.S.C. 291-300	Claims about gold, silver, platinum, fineness, plating, gemstones, laboratory-grown stones, treatments, or origin.	High / Medium

Requirement	Agency	Basis	Trigger	Severity
State chemical warnings and limits	States	Proposition 65 and state children's-product or jewelry laws	Sale into the relevant state and facts establishing exposure or a prohibited concentration.	High / Medium

Cadmium correction

Do not publish a single universal federal cadmium concentration limit for all jewelry. CPSC may act under the Federal Hazardous Substances Act when a product presents a hazardous level of accessible cadmium, while particular state laws and private standards may impose numerical limits. ASTM F2923 is useful for children's jewelry but is not, by itself, a universal mandatory federal rule for all jewelry.

What sellers most often get wrong

- Testing a composite sample that masks a noncompliant charm, clasp, solder joint, coating, bead, or substrate instead of evaluating accessible components correctly.
- Relying on a factory declaration; marketing a child-oriented set as adult jewelry; or assuming an age label overrides design, packaging, themes, and marketplace placement.
- Treating a remembered 100 ppm cadmium value as a universal federal jewelry rule without checking the product, exposure, state, and governing authority.
- Confusing solid precious metal, vermeil, filled, bonded, plated, or flashed articles; omitting a required name or trademark tied to a quality mark.
- Failing to distinguish natural, laboratory-grown, simulated, treated, or composite gemstones and to disclose material treatments or limitations.
- Ignoring Proposition 65 exposure for lead, cadmium, nickel, or other listed chemicals even when the item meets a federal composition rule.

Official support: [FTC Jewelry Guides](#); [CPSC Children's Jewelry Lead and Cadmium Recall Example](#); [California OEHHA - Businesses and Proposition 65](#).

9. Part B - Pet products

'Pet products' is not a workable compliance category. Split consumables, animal-derived goods, pesticidal or drug products, and ordinary accessories. The same physical form can move between agencies because of ingredients, animal species, disease risk, intended use, and marketing claims.

Pet food, treats, supplements, and edible chews		Critical
Agency: FDA, state feed-control authorities, and sometimes USDA APHIS Basis: FD&C; Act; 21 CFR Parts 1 and 507; FSVP in 21 CFR Part 1, Subpart L; prior notice; facility registration; ingredient and labeling rules		
Trigger	A product intended for animal consumption, including many treats, supplements, and chews. Animal-derived material may add APHIS controls; state registration and label review are common.	
Accuracy finding	Build modules for foreign-facility registration, prior notice, importer identification, FSVP, preventive-controls applicability, ingredient legal status, contaminant and microbiological hazards, labeling, records, and state registration. Claims may turn a feed into an unapproved animal drug.	
What importers get wrong	Confusing factory registration with the importer's FSVP duty; using a generic audit instead of a supplier- and food-specific hazard evaluation; keeping records that are not promptly retrievable in English; missing prior notice; treating a pet supplement like a human dietary supplement; using an unapproved ingredient; or making disease-treatment claims.	
Official sources	FDA Foreign Supplier Verification Programs ; FDA FSVP Warning Letter Example, 2026	

Animal-derived nonfood articles and chews		Critical
Agency: USDA APHIS, CBP, and sometimes FDA Basis: APHIS animal-product import requirements, permit conditions, and disease-related restrictions		
Trigger	Animal species, country, disease status, processing method, end use, and product composition bring the article within an APHIS requirement or exception.	
Accuracy finding	Screen the exact animal material and origin before shipment. Determine permit, certificate, treatment, inspection, port, and ACE data requirements. An exemption should be documented against the precise APHIS conditions.	
What importers get wrong	Assuming 'fully processed' automatically means exempt; confusing the product's manufacturing country with the animal material's origin; applying for a permit after the shipment departs; or using a customs classification that obscures the animal ingredient.	
Official sources	USDA APHIS Animal Product Imports	

Flea, tick, antimicrobial, and therapeutic products		Critical / High
Agency: EPA and/or FDA Basis: FIFRA for pesticides; FD&C; Act for animal drugs		
Trigger	Claims or ingredients indicate prevention, repelling, killing, mitigation, treatment, or therapeutic effect. Product type and active ingredient determine whether EPA or FDA regulates it.	
Accuracy finding	Add a claims-based classification gate before import. Registration, approved application, establishment, labeling, and import requirements can apply; ordinary-accessory treatment is not appropriate.	
What importers get wrong	Importing a pesticidal collar, spray, wipe, shampoo, device, or supplement as an ordinary pet accessory; using foreign claims in online listings; or assuming 'natural' ingredients avoid pesticide or drug status.	
Official sources	EPA Regulation of Flea and Tick Products	

Ordinary non-consumable accessories		Medium / Low
Agency: CPSC, FCC, PHMSA, CBP, state agencies as triggered Basis: General consumer-product, origin, electronics, battery, chemical, stuffing, textile, or wildlife-material rules		
Trigger	Leashes, bowls, beds, carriers, toys, grooming tools, electronics, or other accessories with a separate regulated attribute.	
Accuracy finding	There is usually no FDA requirement solely because an article is for an animal. Apply overlays for lead paint, button batteries, radio functions, lithium transport, food contact, origin, state stuffed-article registration, or wildlife/animal material as the facts require.	
What importers get wrong	Treating every pet product as FDA regulated; or the opposite - ignoring FCC, battery, food-contact, state stuffing, origin, or animal-material rules. A product is not automatically a children's product merely because a child can reach it, although child-directed design or marketing can change the analysis.	
Official sources	CPSC Button Cell and Coin Battery Guidance ; 47 CFR 15.101 - Equipment Authorization of Unintentional Radiators ; CBP Marking of Country of Origin on U.S. Imports	

10. Library architecture and questionnaire improvements

The current questionnaire has the right objective - written, line-item review - but it needs more structured fields so corrections can be implemented safely and rechecked later.

Field	What to capture
Requirement statement	One atomic obligation in plain English; avoid combining test, certificate, label, filing, and transport duties in one row.
Trigger facts	Age grade, intended user, materials, components, coatings, claims, food or mouth contact, animal species, battery chemistry, wireless function, dimensions, and sales jurisdictions.
Authority layer	Federal product safety, customs, transport, state, carrier, retailer, marketplace, insurance, or voluntary certification.
Legal status	Mandatory statute/regulation; incorporated consensus standard; guidance/enforcement policy; voluntary standard; contractual requirement.
Timing	Before manufacture, before import, at entry, before sale, at listing, ongoing, or post-market.
Evidence	Test report, certificate, registration, listing, permit, label artwork, technical file, supplier statement, records, or filing data.
Enforcement effect	Transport rejection, CBP hold, detention/refusal, sale prohibition, recall, relabeling, audit, civil penalty, state notice, or commercial rejection.
Source control	Primary URL, legal citation, incorporated-standard edition, source revision date, library review date, effective date, and next recheck.
Confidence and owner	Confirmed, conditional, unresolved, or specialist review required; name the internal owner and external specialist type.

Recommended SKU intake questions

Question group	Required facts
User and marketing	Intended age; primary user; toy/play value; child themes; product name; package claims; website and ad claims; professional or household use.
Physical product	Bill of materials; coatings; accessible components; dimensions; detachable parts; magnets; cords; fill; composite wood; animal-derived materials; food-contact surfaces.
Electronics and energy	Clock/microprocessor; oscillator; intentional RF functions; module/FCC ID; mains or low-voltage power; battery chemistry, cell/pack model, watt-hours, button-cell form.
Use conditions	Food type, time, temperature, repeated use; sleeping or loungewear; furniture storage function; indoor/outdoor; ingestion or mouthing; animal consumption.
Supply chain	Manufacturer and factory; material suppliers; countries of animal/material origin; test lab; production-lot link; importer of record; U.S. responsible party; FSVP importer.
Markets	U.S. states; California sales; marketplaces and retailers; transport mode and carrier; local code or insurer requirements.

Why eCFR checking alone is not enough

The planned live eCFR verification is essential, but the library also needs:

- U.S. Code for statutory duties that do not have a single implementing CFR part, such as tracking labels and parts of MoCRA.

- Standards incorporated by reference, including ASTM editions, because the CFR may name the standard without reproducing its technical content.
- FDA guidance, compliance policy guides, import alerts, registration systems, effective Food Contact Notifications, and enforcement materials.
- CPSC rule pages, recalls, testing and certification guidance, and effective-date changes such as certificate eFiling.
- APHIS country/species/process matrices and permit conditions, which cannot be inferred safely from a broad product category.
- State regulations and official warning guidance, including California Proposition 65; plus carrier and retailer requirements clearly labeled as non-federal.

Recommended launch modules

Priority	Module	Why
1	General textile apparel	High volume; rules are structured and separable from children's sleepwear.
2	Children's sleepwear	High hazard and recall exposure; warrants its own fit, fabric, label, and certificate logic.
3	Cosmetics	High e-commerce volume; strong value from claims, label, MoCRA, and import gates.
4	Food-contact kitchenware	High value if built as a material/use-condition workflow, not a universal certificate checklist.
5	Composite-wood furniture	Clear supplier, label, records, and import-certification structure; hidden-panel risk is common.
6	Upholstered furniture and mattresses	Launch as separate submodules despite a common merchandising category.
7	Children's jewelry	Strong lead, certificate, tracking, and age-grade logic; cadmium requires careful state/federal wording.
8	Pet food and edible chews	High enforcement severity; requires FDA, FSVP, prior notice, ingredient, state, and sometimes APHIS logic.
9	Ordinary pet accessories	Useful as a cross-category overlay module, distinct from consumables and pesticides.

Suggested acceptance rule for every library entry

Do not mark an entry 'confirmed' until the team can state: (1) the product facts that trigger it; (2) the legal authority and current version; (3) the exact evidence required; (4) who creates or files that evidence; (5) when it must exist; and (6) what happens if it is missing.

11. Official source directory

The links below are primary or official regulator sources used in this review. They should be rechecked when each library entry is published because regulations, incorporated standards, enforcement policies, forms, and effective dates can change.

CPSC - toys, certificates, batteries, and consumer products

- [CPSC Toy Safety Business Guidance](#)
- [CPSC Most Common Import Violations](#)
- [CPSC Common E-commerce Safety Violations](#)
- [CPSC Mandatory eFiling, effective July 8, 2026](#)
- [CPSC General Certificate of Conformity Guidance](#)
- [CPSC Rules Requiring a GCC](#)
- [CPSC Button Cell and Coin Battery Guidance](#)
- [16 CFR Part 1307 - Prohibition of Children's Toys and Child Care Articles Containing Specified Phthalates](#)
- [CPSC Upholstered Furniture FAQ](#)
- [CPSC Mattress Flammability Recall Example](#)
- [CPSC Clothing Storage Unit Warning Example](#)
- [CPSC Children's Jewelry Lead and Cadmium Recall Example](#)
- [CPSC Children's Sleepwear Recall Example](#)

FCC and hazardous-material transport

- [47 CFR 15.101 - Equipment Authorization of Unintentional Radiators](#)
- [FCC Enforcement Advisory on Radiofrequency Devices](#)
- [PHMSA Lithium Battery Test Summary Guidance](#)

FTC and CBP - labeling, origin, and marketing

- [FTC Threading Your Way Through Textile Labeling](#)
- [FTC Penalty Offenses Concerning Textiles](#)
- [FTC Jewelry Guides](#)
- [CBP Marking of Country of Origin on U.S. Imports](#)

FDA - cosmetics, imports, food contact, and animal food

- [FDA Modernization of Cosmetics Regulation Act \(MoCRA\)](#)
- [FDA Cosmetics Facility Registration and Product Listing](#)
- [21 CFR Chapter I, Subchapter G - Cosmetics](#)
- [FDA Warning Letters Related to Cosmetics](#)
- [FDA Import Refusals](#)
- [FDA Food Contact Substance Inventory](#)
- [FDA Letter Concerning Lead in Certain Imported Cookware](#)
- [FDA Compliance Policy Guide on Cadmium in Pottery](#)
- [FDA Foreign Supplier Verification Programs](#)
- [FDA FSVP Warning Letter Example, 2026](#)

EPA, USDA APHIS, and California

- [EPA TSCA Title VI Importer Guidance](#)
- [EPA Enforcement for Imported Composite Wood](#)
- [USDA APHIS Animal Product Imports](#)
- [EPA Regulation of Flea and Tick Products](#)
- [California OEHHA - Businesses and Proposition 65](#)

Final conclusion

Lunair World can build a credible import-requirements reference library for these categories. The safest model is a product-attribute rules engine backed by modular requirements, dated primary sources, and specialist escalation points - not a flat HTS-to-requirement list. With the corrections in this report, the proposed written-review process is materially stronger than the original draft.

Prepared for informational and product-development purposes. This report does not replace a binding CBP ruling, regulator determination, laboratory report, legal opinion, or product-specific review.